



CHAPTER xv

An Act to authorise the urban district council of Belper to acquire the undertaking of the Belper Market and Fair Company Limited and to establish maintain and carry on or discontinue markets and fairs to confer further powers on the Council in regard to lands and to make further and better provision for the health local government finance and improvement of their district and for other purposes. [20th May 1953]

WHEREAS—

(1) The urban district of Belper (in this Act referred to as “the district”) is under the government of the urban district council of Belper (in this Act referred to as “the Council”):

(2) There has been held at any rate from September one thousand seven hundred and thirty-seven and probably from time immemorial within the township or parish of Belper (now comprised in the district) on a site known and hereinafter referred to as “the Market Place” a weekly market for buying and selling all kinds of goods with toll and with all liberties and free customs to such a market belonging and there have also been held from time immemorial within the said township or parish on the said Market Place and on a site adjoining thereto known and hereinafter referred to as “the Coppice” yearly fairs known as the Belper Fairs for buying and selling all kinds of goods and in respect of all goods and other things sold in the said fairs the owner for the time being of the said fairs has been accustomed from time immemorial to take and receive reasonable tolls:

(3) The Market Place and the Coppice and a small piece of adjoining land together with certain rights of way and other rights connected therewith and all market and fair rights tolls profits and emoluments exercised or enjoyed in the said township or parish were formerly owned by the lord of the manor of Belper but since the twenty-third day of September one thousand nine hundred and twenty-one have been vested in fee simple in the Belper Market and Fair Company Limited (hereinafter called "the company"):

(4) The said fairs were formerly held on the twenty-eighth day of January and on the fifth day of May and on Whit Monday and on the thirty-first day of October but the fairs held on the twenty-eighth day of January and on the fifth day of May and on Whit Monday have died out and the date of the October fair was changed by notice in the London Gazette in July one thousand eight hundred and ninety-seven to the Thursday falling nearest to the thirty-first day of October and the holding of the fair in one thousand eight hundred and ninety-seven and subsequent years has commenced on that day:

(5) In modern times the market has become much reduced in the extent of the business done but the fair has been popular and a valuable centre of local interest:

(6) The Council are desirous of acquiring the undertaking of the company in the interests of the district and extending the periods and the services and facilities of both market and fair and exercising in relation to the carrying on thereof the powers for which provision is in this Act contained:

(7) The Council have had negotiations with the company for settlement of terms of acquisition of the said undertaking and a price has been agreed but the terms of purchase have not yet been completely settled and embodied in an agreement:

(8) The Council although they have powers under Part V of the Food and Drugs Act 1938 to establish markets and acquire market undertakings within the district have no powers under the general law for acquiring or carrying on fairs and it is expedient that the provisions in this Act contained with respect to the acquisition of the undertaking of the company and the carrying on of markets and fairs by the Council and matters connected therewith should be sanctioned:

(9) It is expedient that further and better provision should be made with reference to lands streets sanitation and buildings and for the health local government and improvement of the district and that the powers of the Council in relation thereto should be enlarged and extended:

(10) It is expedient to make further provision with regard to the finances of the district as by this Act provided:

(11) It is expedient that the other provisions contained in this Act be enacted:

(12) The purposes of this Act cannot be effected without the authority of Parliament:

(13) In relation to the promotion of the Bill for this Act the requirements of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

1. This Act may be cited as the Belper Urban District Short title. Council Act 1953.

2. This Act is divided into Parts as follows:—

Division of
Act into Parts.

- Part I.—Preliminary.
- Part II.—Markets and fairs.
- Part III.—Lands.
- Part IV.—Streets.
- Part V.—Sanitation and buildings.
- Part VI.—Infectious diseases.
- Part VII.—Financial.
- Part VIII.—Miscellaneous.
- Part IX.—General.

3. The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with this Act (namely):—

Incorporation
of Acts.

- (a) The Lands Clauses Acts except sections 127 to 132 (which relate to the sale of superfluous lands) of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement;
- (b) The Markets and Fairs Clauses Act 1847 except sections 17 to 30 34 35 43 to 50 and 56 of that Act and the words of section 42 thereof from “and such byelaws” to the end of the section:

Provided that—

- (i) sections 12 14 31 and 32 of that Act shall not apply to any market or fair of the company transferred to the Council in pursuance of this Act;

PART I
—cont.

- (ii) the prescribed limits for the purposes of section 13 of that Act shall be fifty yards from the Market Place or Coppice.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction and in this Act unless the subject or context otherwise requires—

“ Act of 1948 ” means the Companies Act 1948 ;

“ clerk ” “ medical officer ” “ surveyor ” and “ sanitary inspector ” mean respectively the clerk the medical officer of health the surveyor and any sanitary inspector of the Council and include any person duly appointed by the Council to discharge temporarily the duties of any of those officers ;

“ contravention ” in relation to any enactment byelaw order rule term condition restriction or notice includes a failure to comply with that enactment byelaw order rule term condition restriction or notice and “ contra-vene ” shall be construed accordingly ;

“ company ” means the Belper Market and Fair Company Limited ;

“ Council ” means the urban district council of Belper ;

“ daily penalty ” means a penalty for each day on which any offence is continued after conviction ;

“ day of transfer ” means the first day of October one thousand nine hundred and fifty-three ;

“ district ” means the urban district of Belper ;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the district ;

“ general rate fund ” and “ general rate ” mean respectively the general rate fund and the general rate of the district ;

“ Market Place ” and “ Coppice ” mean respectively the pieces of land described in paragraphs (1) and (2) of the First Schedule to this Act ;

“ Minister ” means the Minister of Housing and Local Government ;

“ statutory securities ” means any securities in which trustees are for the time being authorised by law to invest trust money and any mortgages bonds debentures debenture stock stock or other securities created by a local authority as defined by section 34 of the Local

Loans Act 1875 but does not include annuities rent-charges or securities transferable by delivery or any securities of the Council ;

“ tolls ” includes stallages rents and charges ;

“ undertaking of the company ” means all the real and personal property and rights privileges and interests of the company including the lands and premises described in the First Schedule to this Act and the weekly market held by the company on Saturday of every week in the town of Belper and the yearly fair known as the Belper Fair held in the said town and all rights or franchises of or connected with the holding of markets or fairs on public streets or elsewhere in the district or the taking of tolls in connection therewith vested in or had or enjoyed by the company and all other assets of the company save and except cash at bank or in hand and debts due to the company for unpaid tolls or otherwise on revenue account and except the books and papers relating exclusively to the shareholders in or the constitution of the company ;

“ water undertaking ” means the water undertaking of the Council.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

MARKETS AND FAIRS

Transfer of undertaking of company

5.—(1) The company shall sell to the Council and the Council shall purchase the undertaking of the company as the same shall exist on the day of transfer on the payment to the company of a purchase price of five thousand pounds and on such terms and conditions (not relating to the amount of the purchase money) as may be agreed upon between the company and the Council or in default of agreement as may be determined by arbitration in pursuance of the provisions of the Arbitration Act 1950 except that the arbitrator shall be agreed upon by the company and the Council or in default of agreement shall be appointed by the President of the Law Society on the application of either the company or the Council. Transfer of undertaking of company.

(2) The provisions of the Lands Clauses Acts shall not apply to the said sale and purchase.

PART II
—cont.

(3) On the day of transfer the undertaking of the company shall by virtue of this Act and without further assurance vest in the Council free from all mortgages charges or other encumbrances and from any debts or liabilities of the company.

(4) The sum of money payable by the Council to the company in pursuance of the provisions of subsection (1) of this section shall be paid on the day of transfer or as soon as reasonably practicable thereafter and in the latter case the Council shall also pay to the company together with such sum interest thereon at the rate of five per centum per annum from the day of transfer until the day of such payment.

**Receipt for
consideration.**

6. The receipt in writing of two directors of the company for the purchase price paid to them by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Council are unable to obtain such receipt from the directors of the company they may lodge the money in the supreme court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 and a certificate given in accordance with those rules stating that such money has been so lodged shall have the same effect for the purposes of this and the next succeeding section of this Act as the receipt of two directors of the company.

**Evidence of
transfer.**

7. The production of a Queen's Printers' or Royal Assent copy of this Act duly stamped together with a receipt for the purchase price purporting to be signed by two directors of the company shall (unless it be proved that such price has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Council of the undertaking of the company.

**Company to
discharge
mortgages.**

8. All mortgages and other charges (if any) upon or affecting the undertaking of the company or due from or payable by the company which at the day of transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the company and the company shall indemnify the Council against the same.

**Apportionment
of outgoings.**

9. The company shall be entitled to all receipts on revenue account from their undertaking and shall discharge and pay all outgoings and liabilities in respect thereof due up to or which shall have accrued due prior to the day of transfer and the Council shall be entitled to all receipts on revenue account and shall discharge and pay all outgoings and liabilities (not being mortgages or other charges or interest thereon) in respect of the

undertaking of the company which shall accrue due on and after the day of transfer and where necessary all such receipts or outgoings shall be apportioned between the company and the Council.

PART II
—cont.

10. Until the day of transfer the undertaking of the company shall be maintained and carried on by the company in the ordinary course of business except that the company shall not without the consent in writing of the Council (which consent shall not be unreasonably withheld) under the hand of the clerk—

Maintenance
of undertaking
of company
until transfer.

- (a) make any outlay or incur any liability in respect of the undertaking otherwise than in the ordinary way of business ;
- (b) alter the tolls which were in operation on the date of the passing of this Act ;
- (c) enter into any contract agreement or other obligation in respect of or affecting the undertaking (except such contracts agreements and obligations as are in the ordinary course of business) the duration of which shall extend beyond the day of transfer.

11. Except as by this Act otherwise provided all contracts agreements conveyances deeds leases licences and other instruments affecting the company and in force on the day of transfer shall (subject as hereinafter provided) as from that date be as binding and of as full force and effect against or in favour of the Council and may be enforced against or in favour of the Council as fully and effectually as if instead of the company the Council had been a party thereto or bound thereby or entitled to the benefit thereof and the Council shall as from the said date indemnify the company from and against all actions claims demands losses damages costs and expenses whatsoever in respect thereof :

Contracts to be
binding.

Provided that no contract agreement conveyance deed lease licence or other instrument made granted or entered into by the company after the twenty-seventh day of November one thousand nine hundred and fifty-two shall be binding on or of any force or effect against or in favour of the company if made granted or entered into in contravention of the provisions of section 10 (Maintenance of undertaking of company until transfer) of this Act.

12. If on the day of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding shall be pending or existing by or against or in favour of the company the same shall not (save so far as it relates to any

Pending
actions not
to abate.

PART II
—*cont.*

contract agreement conveyance deed lease licence or other instrument not binding on the Council under section 8 (Company to discharge mortgages) or under section 11 (Contracts to be binding) of this Act) abate or be discontinued or in any wise prejudicially affected by reason of the transfer but may so far as it relates to the undertaking of the company be continued prosecuted and enforced by against or in favour of the Council as if this Act had not been passed but not further or otherwise.

Books etc.
to remain
evidence.

13. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the company shall on and after the day of transfer be admitted in evidence in respect of the same or the like matter for or against the Council.

Winding up
of company.

14.—(1) From and after the day of transfer the company shall subsist only for the purpose of receiving and recovering the money to which the company are entitled under this Act and of discharging paying and satisfying the mortgages charges debts and liabilities upon the undertaking of the company or due from or payable by the company and of paying and distributing any dividends interest or other moneys to be distributed by them and for winding up their affairs and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office at the day of transfer or the survivors of them shall continue in office without re-election and they or a majority of them or in the event of a liquidator being duly appointed the liquidator shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

(2) If the number of directors of the company be reduced below two before the completion of the winding up of the company or the appointment of a liquidator the continuing director shall from time to time choose any person who immediately prior to the day of transfer was a shareholder of the company to fill the vacancy so caused.

(3) As from the day of transfer or such later date as the money to which the company are entitled under this Act is paid as the case may be (in this section referred to as "the day of completion") the company shall be deemed to be a company to which section 278 of the Act of 1948 applies and to have passed a special resolution for a members' voluntary winding up but sections 143 and 342 of that Act shall not apply.

(4) It shall not be necessary for the directors of the company to make any such declaration as is referred to in section 283 of the Act of 1948 but subject to the provisions of this section the company shall be wound up under and in accordance with the

provisions of the Act of 1948 applicable to a members' voluntary winding up as if such declaration had been made but the provisions of subsections (3) (4) (5) and (6) of section 290 of the Act of 1948 shall not apply.

PART II
—cont.

(5) The company shall within one month after the day of completion give notice by advertisement in the London Gazette of the provisions of this section as to the voluntary winding up of the company and the publication of the said advertisement shall be deemed to be compliance with the requirements of section 279 of the Act of 1948.

(6) Within three months after the day of completion the company shall convene and hold a general meeting for the appointment of one or more liquidators for the purpose of winding up their affairs and distributing their assets pursuant to section 285 of the Act of 1948 and may fix the remuneration to be paid to the liquidator or liquidators but section 305 of the Act of 1948 shall not apply.

15.—(1) The company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the company who knowingly and wilfully authorises such default shall incur a like penalty. Every penalty under this section shall be recoverable summarily.

(2) There shall be paid to the registrar by the company on such copy being registered the like fee as is for the time being payable under the Act of 1948 on registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

*Establishment and maintenance of markets and fairs by
the Council*

16.—(1) From and after the day of transfer the Council may exercise all or any of the following powers (that is to say):—

(a) They may carry on the market and fair undertaking transferred to them under this Act and the markets and fairs comprised therein and may regulate and maintain and from time to time extend and add to the same upon the lands now used for any of the purposes of that undertaking and upon any lands within the district acquired by the Council in pursuance of this

Power to
establish
continue and
discontinue
markets
and fairs.

PART II
—cont.

Act under section 29 (Purchase of land for market and fair undertaking) of this Act or belonging to the Council and appropriated for such purposes under section 163 of the Local Government Act 1933 ;

- (b) They may from time to time alter the places at which any market of the Council is or may be held and establish and hold new markets and fairs and discontinue the whole or any part of any market or fair held by the Council :

Provided that the power to discontinue any existing or new market shall not be exercised unless and until the same shall be sanctioned by the Secretary of State ;

- (c) They may alter enlarge or improve any of the market buildings or premises of the Council ;
- (d) They may erect provide maintain equip and extend market houses market places weighing houses weighing places stalls offices shops catering establishments (subject to the provisions of all enactments relating thereto) stores warehouses and other tenements or buildings for the purposes of or in connection with any of the markets or fairs of the Council.

(2) Not less than one month before the Council make any application to the Secretary of State for his sanction to any discontinuance of any existing or new market under the proviso to paragraph (b) of the preceding subsection notice of intention of the Council to make such application to the Secretary of State shall be published in one or more local newspapers circulating in the district and in the London Gazette.

**Power to
grant leases.**

17. The Council may grant leases (with the right if they think fit of assigning the same with their consent) of the markets fairs market houses market places weighing houses weighing places and weighing machines from time to time under the management of the Council or any of them and the tolls or any of them and any of the stalls standing places benches ground spaces and other conveniences in the markets and fairs of the Council or in any market house or market place for the time being belonging to them or under their management to any person for any period not exceeding seven years and on such terms and conditions as the Council may think fit and may grant leases (with a similar right) of any office shop catering establishment store warehouse tenement cellar or building situate in any of the markets of the Council or forming part of or acquired or erected in connection with their market and fair undertaking including any premises not used for the time being in connection with that undertaking to any person for such period not exceeding seven years and on such terms and conditions as the Council may think fit.

PART II
—cont.

18. The Council may demand and take (a) as respects any market of the Council from any person occupying or using in any such market any stand stall standing place or defined space not specifically let on a tenancy a sum not exceeding two shillings for every superficial square yard or fractional part of a superficial square yard per day or part of a day (b) as respects any fair held in the district from any person occupying or using in any such fair any stand stall standing place or defined space tolls not exceeding those specified in the Second Schedule to this Act. Tolls to be taken for market or fair

19.—(1) The Council may with the sanction of the Secretary of State from time to time alter or increase the amount of two shillings specified in the last preceding section or the tolls mentioned in the said Second Schedule or demand and take other tolls and any such altered tolls shall as from the date on which they came into operation be substituted for the corresponding tolls payable under the said last preceding section. Alteration of tolls.

(2) Not less than one month before the Council make any application to the Secretary of State for any alteration or increase of or addition to the tolls payable in respect of any market or fair of the Council under the preceding subsection notice of intention of the Council to make such application to the Secretary of State shall be displayed in the Market Place and Coppice and shall be published in one or more local newspapers circulating in the district and in the London Gazette.

20. The several tolls in the markets and fairs of the Council payable with respect to the occupation or user of any stand stall standing place or space shall be paid not only by the original taker or occupier thereof for the part of the day or other time but also by any subsequent taker or occupier thereof for any other part of the same day or other time. Tolls to be payable by successive occupiers of stalls etc.

21. If any person liable to pay any toll to the Council in respect of the markets or fairs shall give an incorrect account of the same or make any false statement in relation thereto or refuse or neglect to give a correct account thereof with a view to evade or attempt to evade the payment of such toll or any part thereof every such person shall be liable to a penalty not exceeding five pounds and to pay the amount of the tolls so evaded or attempted to be evaded. Penalty for attempting to evade payment of tolls.

22. If any person shall not after any toll has become due from and payable by him to the Council in respect of any building stand stall shed yard enclosure site space of ground or other convenience or accommodation in the markets and fairs and after demand has subsequently been made therefor pay the same forthwith the Council may enter upon and take possession of such Power to take possession of stalls etc. for non-payment of toll.

PART II
—cont.

building stand stall shed yard enclosure site space of ground or other convenience or accommodation and relet the same without prejudice to any other remedy for the recovery of such toll.

Forfeiture
of articles
left in market
or fair.

23.—(1) Every article brought into the market or fair and left therein after the hour of closing on any day may be taken possession of by the superintendent or inspector of the market or fair.

(2) In the case of any animal or non-perishable article so left if it be not claimed within fourteen days the Council may proceed to sell the same and in that case they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid toll due in respect thereof or from the owner thereof together with the expenses of detention and sale.

(3) In the case of any article or commodity of a perishable nature so left if it be not claimed within twelve hours the Council may proceed to sell the same and in that case they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid toll due in respect thereof or from the owner thereof together with the expenses of detention and sale.

(4) The Council may if they think fit at the expiration of the periods respectively hereinbefore mentioned with respect to each class of goods destroy any goods of that class so left instead of selling the same and in the case of any article or commodity of a perishable nature the cost of destruction may be recovered by the Council from the owner in a summary manner.

(5) If in any such case as hereinbefore mentioned no demand shall be made by an owner within one month of a sale for the return of any surplus arising from a sale the proceeds of such sale shall be forfeited to the Council.

(6) During the period of any fair and upon the day preceding and the day following the said period nothing in this section shall apply to any article of equipment of and belonging to a travelling showman who is occupying or using any stand stall standing place or defined space at the fair for which tolls are payable under section 18 (Tolls to be taken for market or fair) of this Act and regularly used by him in the course of and for the purpose of his business.

Information
as to number
weight etc.
of articles
brought to
market or fair.

24.—(1) The person in charge of any vehicle in which and any person by whom any articles are brought for sale in the markets or fairs of the Council shall give to any authorised market officer such information as to their number and kind or in the case of articles on which tolls are chargeable by reference to weight as to their weight as that officer may call for.

(2) Any person who fails to comply with the provisions of this section shall be liable to a penalty not exceeding five pounds.

25. The powers conferred upon the Council by section 42 of the Markets and Fairs Clauses Act 1847 with this Act incorporated shall extend to the making repealing or altering of byelaws for all or any of the following purposes in relation to any market or fair held by the Council (that is to say):—

PART II
—cont.

Power to make
byelaws as to
market or fair.

- (1) for the preservation of order and good conduct among persons frequenting the market or fair ;
- (2) for securing public health and decency and the safety of persons resorting to the market or fair ;
- (3) for regulating the erection or placing on the lands on which the market or fair for the time being is held of any booths tents sheds stands and stalls (whether fixed or movable) or vehicles for the sale or exposure of any article or thing or for any other purposes or any shows exhibitions performances swings roundabouts or other erections vans photographic carts or other vehicles whether drawn or propelled by animals persons or mechanical power.

26. The Council may for such rent or charge and on such terms and conditions as they may think fit let or grant the use of any part or parts of—

Power to let or
grant use of
Market Place
or Coppice
when not
required for
market or fair.

- (a) the Market Place and the Coppice (other than any part over which the public have rights of passage) for the purpose of any visiting circus or other amusement or for the vending of soft fruit or ice-cream or for any similar purposes ;
- (b) the Coppice (other than as aforesaid) for the purpose of the location there of caravans or other vehicles for the residence of showmen who cater for amusements at fairs and their families and assistants and employees and for the location of properties for amusement purposes or other apparatus of such showmen :

Provided that any such letting or grant shall not interfere in any way with the holding of any market or fair of the Council or be inconsistent with the provisions of any lease granted by the Council in pursuance of the provisions of section 17 (Power to grant leases) of this Act.

27.—(1) The Council may use any part or parts of the Market Place and the Coppice (other than any part over which the public have rights of passage) as a parking place or parking places within the meaning of the definition in subsection (9) of section 68 of the Public Health Act 1925 :

Power to use
part or parts of
Market Place
and Coppice
for parking of
vehicles.

Provided that any such use shall not extend to any period of or interfere in any way with the holding of any market or fair

PART II
—*cont.*

of the Council or be inconsistent with the provisions of any lease or grant by the Council in pursuance of the provisions of section 17 (Power to grant leases) or section 26 (Power to let or grant use of Market Place or Coppice when not required for market or fair) of this Act.

(2) The Council may take all such steps as may be necessary to adapt for use as a parking place any land used or to be used for that purpose under this section and may appoint with or without remuneration such officers and servants as may be necessary for the superintendence of any such parking place or places.

(3) The Council may make byelaws as to the use of any such parking place or places and in particular as to the vehicles or class of vehicles which may be entitled to use the same as to the conditions upon which any such parking place may be used and as to the charges to be paid to the Council in connection with such use and a copy of any such byelaws shall be exhibited on or near any parking place to which they apply.

PART III

LANDS

Extension of
power to
acquire land by
agreement.

28.—(1) The Council may by agreement acquire (whether by purchase lease or exchange) and hold any land which in their opinion it is desirable that they should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the district notwithstanding that the land may not be immediately required.

(2) Any land acquired under this section may be appropriated by the Council subject to and in accordance with the provisions of section 163 of the Local Government Act 1933 as if it were not required for the purposes for which it was acquired.

(3) Pending such appropriation as aforesaid all expenses incurred by the Council under this section shall be payable out of the general rate fund.

Purchase of
land for market
and fair
undertaking.

29.—(1) The Council by means of an order made by them and submitted to the Minister and confirmed by him may be authorised to purchase compulsorily land within the district for the purposes of the market and fair undertaking of the Council.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946.

30.—(1) The Council may (with the consent of the Minister) lay out and develop any land for the time being belonging to them and not required for the purpose for which it was acquired and may on any such land erect and maintain houses shops offices warehouses and other buildings and construct sewer drain pave channel and kerb streets: Development of land.

Provided that nothing in this section shall apply to land acquired by the Council under section 38 or section 40 of the Town and Country Planning Act 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections.

(2) The Council may use or dispose of the building or other materials of any houses or structures on any land acquired or appropriated by them which they deem it necessary or desirable to pull down.

PART IV

STREETS

31.—(1) In this Part of this Act the expression “street byelaws” means any byelaws for the time being in force in the district with respect to the level width and construction of new streets. Interpretation of Part IV.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof began.

32.—(1) Where a plan and sections of a new street have been deposited with the Council in pursuance of street byelaws and have been approved by them no person shall without their consent begin to erect a building on land abutting on the street until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts on the land on which the building is to be erected and on any land which will be occupied in connection with the building. Prohibition of building until street defined.

(2) Where the approved width of a new street has been defined as aforesaid no person shall begin to erect a building or structure nearer to the centre of the street than the line of the posts or other marks by which the width has been so defined.

(3) If any person contravenes the provisions of either of the foregoing subsections he shall be liable to a penalty not exceeding twenty pounds and the Council may—

(a) in the case of a contravention of subsection (1) define as aforesaid the approved line width and level of the new street ; and

PART IV
—cont.

(b) in the case of a contravention of subsection (2) remove the building or structure ;

and in either case recover the expenses of so doing from that person.

Prohibition
of building
until street
formed and
sewered.

33.—(1) Where a plan and sections of a new street deposited with the Council in pursuance of street byelaws are approved by them they may by notice prohibit the erection of any building on land abutting on the street until the carriageway of the street has been constructed and the street has been sewered in accordance with the said byelaws :

Provided that where the plan shows that the street will exceed one hundred yards in length the Council shall divide the street for the purpose of the notice into lengths not exceeding one hundred yards and each such length shall for that purpose be treated as a separate street.

(2) Any such notice shall be given to the person by whom or on whose behalf the plan and sections were deposited and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes the provisions of any such notice he shall be liable to a penalty not exceeding twenty pounds and the Council may construct the carriageway and works of sewerage which should have been constructed and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 with respect to the avoidance of any such notice for want of registration as a local land charge.

(4) The execution of any works under the provisions of this section shall not relieve any person from any liability under the Private Street Works Act 1892.

Guard rails in
private streets.

34.—(1) So much of section 149 of the Public Health Act 1875 as relates to fences and posts for the safety of foot-passengers in streets repairable by the inhabitants at large shall extend to streets in the district which are not so repairable.

(2) The Council shall not without the consent of the undertakers concerned exercise the powers of this section—

(a) in any street belonging to or repairable by any transport undertakers and forming the approach to any station or depot of those undertakers ; or

(b) so as to obstruct or interfere with the access to or exit from any station or depot of any transport undertakers:

PART IV
—cont.

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

(3) In this section the expression “transport undertakers” means any railway or passenger road transport undertakers.

35.—(1) In this section the expression “retaining wall” means a wall which— Retaining walls.

(a) serves or is intended to serve as a support for earth or other material on one side only; and

(b) does not form part of a permanent building;

and this section applies to any length of a retaining wall being a length—

(i) any cross-section whereof is wholly or partly within twelve feet of a street in the district; and

(ii) which is at any point of a greater height than six feet above the level of the ground at the boundary of the street nearest that point.

(2) After the passing of this Act no length of a retaining wall to which this section applies shall be erected otherwise than in accordance with plans sections and specifications approved by the Council and if any person erects any such length of a wall in contravention of this subsection he shall be liable to a penalty not exceeding five pounds.

(3) Any person aggrieved by the refusal of the Council to approve any plans sections and specifications submitted to them in pursuance of the last foregoing subsection may appeal to a court of summary jurisdiction.

(4) If any length of a retaining wall to which this section applies—

(a) is in such disrepair as to be liable to endanger persons using the street; or

(b) having been erected before the passing of this Act or erected in contravention of subsection (2) of this section is so constructed as to be liable as aforesaid;

the Council may by notice to the owner or occupier require him to execute such work as may be necessary to prevent it being liable as aforesaid and the provisions of section 290 of the Public Health Act 1936 shall apply in relation to such a notice as they apply in relation to the notices mentioned in subsection (1) of that section.

PART IV
—cont.

(5) The provisions of this section shall not apply to a retaining wall erected on land belonging to any railway undertakers so long as that land is used by those undertakers primarily for the purpose of their railway undertaking.

(6) The provisions of this section shall not apply to a retaining wall erected by the Minister of Transport on a trunk road.

Decorations
in streets.

36.—(1) The Council may on the occasion of any public festivity cause flag-poles and pylons to be erected in any street in the district for the purpose of displaying decorations and may for that purpose provide sockets or slots in or under the surface of any such street.

(2) If any person wilfully removes or damages any flag-pole pylon socket or slot erected or provided under this section he shall be liable to a penalty not exceeding five pounds.

(3) The Council shall not exercise the powers of this section in a trunk road without the consent of the Minister of Transport.

PART V

SANITATION AND BUILDINGS

*Sewers drains and sanitary conveniences*Delegation of
power to
examine and
test drains etc.

37.—(1) In lieu of section 48 of the Public Health Act 1936 the following provisions of this section shall if the Council by resolution so determine have effect in the district for such period as may be specified in the resolution either as respects the whole of the district or as respects such part or parts thereof as may be so specified.

(2) Where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing—

(a) that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance ; or

(b) that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water ;

he may examine its condition and for that purpose may apply any test other than a test by water under pressure and if he deems it necessary open the ground.

(3) If on examination the convenience drain sewer or cesspool is found to be in proper condition the Council shall as soon as possible reinstate any ground which has been opened by the medical officer or the sanitary inspector and make good any damage done by him.

38.—(1) If it appears to the medical officer or the sanitary inspector that on any premises in the district a drain private sewer water-closet or soil pipe is stopped up he may by notice require the owner or occupier of the premises to remedy the defect within forty-eight hours from the service of the notice.

PART V
—cont.

Summary
power to
remedy
stopped-up
drains etc.

(2) If the notice is not complied with the Council may themselves carry out the work necessary to remedy the defect and may subject to the next following subsection recover the expenses of so doing from the person on whom the notice was served :

Provided that where the said expenses do not exceed two pounds the Council may if they think fit remit the payment thereof.

(3) In any proceedings under this section the court may inquire—

(a) whether any requirement contained in a notice served under this section or any work done by the Council was reasonable ; and

(b) whether the expenses incurred by the Council in doing the work or any part thereof ought to be borne wholly or partly by the person on whom the notice was served ;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just in the circumstances of the case :

Provided that the court shall not order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

39.—(1) If any drain or private sewer in the district—

(a) is not sufficiently maintained and kept in good repair to the satisfaction of the Council ; and

(b) can in the opinion of the Council be sufficiently repaired at a cost not exceeding fifty pounds ;

Power to repair
drains and
private sewers.

the Council may after giving not less than seven days' notice to the person or persons concerned cause the drain or sewer to be repaired and subject to the next following subsection recover the expenses of so doing so far as they do not exceed fifty pounds from the person or persons concerned in such proportions (if there is more than one such person) as the surveyor may determine :

Provided that where the said expenses do not exceed two pounds the Council may if they think fit remit the payment thereof.

PART V
—cont.

(2) In any proceedings under this section the court may inquire—

- (a) whether the drain or sewer in question required repair and whether the work done by the Council was reasonable; and
- (b) whether any apportionment made by the surveyor was fair;

and the court may make such an order concerning the expenses or their apportionment as appears to the court to be just:

Provided that the court shall not revise any apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

(3) In this section the expression “person concerned” in relation to a drain or private sewer means any person owning premises drained by means of the drain or sewer and also in the case of a sewer the owner thereof.

Penalty for
improper
construction
or repair of
water-closet
etc.

40.—(1) If a water-closet drain or soil pipe in the district is so constructed or repaired as to be prejudicial to health or a nuisance the person who undertook or executed the construction or repair thereof shall unless he shows that the prejudice to health or nuisance could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

(2) A person charged with an offence under this section (hereafter in this section referred to as “the original defendant”) shall upon information duly laid by him and on giving to the prosecutor not less than three clear days’ notice of his intention be entitled to have any other person being his agent servant or workman to whose act or default he alleges the offence was due brought before the court at the time appointed for the hearing of the charge and—

- (a) if after the commission of the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence; and
- (b) if the original defendant further proves that he used all due diligence to secure that the water-closet drain or soil pipe in question was so constructed or repaired as not to be prejudicial to health or a nuisance he shall be acquitted of the offence.

(3) Where the original defendant seeks to avail himself of the provisions of subsection (2) of this section—

- (a) the prosecutor as well as the person whom the original defendant charges with the offence shall have the right

to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence ; and

- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

PART V
—cont.

Buildings and structures

41.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Public Health Act 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the district and the following provisions of this section shall have effect in lieu thereof. Ruinous and dilapidated buildings and neglected sites.

(2) Where a building or part of a building in the district is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Council may by notice require the owner thereof within a reasonable time specified in the notice—

- (a) to execute such works of repair or restoration ; or
(b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition ;

as may be necessary for remedying the cause of complaint.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building or part of a building in the district is lying on the site of the building or that part thereof or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Council may by notice require the owner of the site or land within a reasonable time specified in the notice to take such steps for removing the rubbish or material as may be necessary for remedying the cause of complaint.

(4) The provisions of section 290 of the Public Health Act 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) Notwithstanding anything in subsection (3) of section 276 of the Public Health Act 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the Council under this section.

(6) In this section the expression “building” includes any structure.

PART V
—cont.*Filthy or verminous premises or articles*Cleansing of
filthy or
verminous
premises.

42. Section 83 of the Public Health Act 1936 shall in its application to the district have effect as if the following were substituted for subsection (1) thereof:—

“(1) Where the local authority upon consideration of a report from any of their officers or other information in their possession are satisfied that any premises other than a factory within the meaning of the Factories Act 1937—

(a) are in such a filthy or unwholesome condition as to be prejudicial to health ; or

(b) are verminous ;

the authority shall give notice to the owner or occupier of the premises requiring him to take such steps as may be specified in the notice to remedy the condition of the premises by cleansing and disinfecting them and by either—

(i) distempering or whitewashing the interior surface thereof ; or

(ii) in the case of premises used for human habitation or as shops or offices papering or painting the said interior surface ;

and the notice may require among other things the removal of wallpaper or other covering of the walls or in the case of verminous premises the taking of such steps as may be necessary for removing or destroying vermin ”.

Prohibition
of sale of
verminous
articles.

43.—(1) No dealer shall in the district—

(a) prepare for sale ;

(b) sell or offer or expose for sale ; or

(c) deposit for sale or preparation for sale ;

any household article if it is to his knowledge verminous or if by taking reasonable precautions he could have known it to be verminous.

(2) If any household article which is verminous is on any premises in the district—

(a) being prepared or offered by a dealer for sale ; or

(b) exposed by a dealer for sale or deposited by a dealer for sale or preparation for sale ;

the medical officer or the sanitary inspector may cause the article to be disinfested or destroyed as the case may require and if necessary for that purpose to be removed from the premises and the Council may recover from the dealer the expenses incurred by the medical officer or the sanitary inspector in taking any action under this subsection.

(3) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds.

PART V
—cont.

(4) For the purposes of paragraph (a) of subsection (1) of section 287 of the Public Health Act 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Council to enforce.

(5) For the purposes of this section—

- (a) the expression “dealer” means a person who trades or deals in any household article ;
- (b) the expression “household article” means an article of furniture bedding or clothing or any similar article ;
- (c) the expression “preparation for sale” shall not include disinfestation.

PART VI

INFECTIOUS DISEASES

44. In this Part of this Act the expression “notifiable disease” means—

Definition of
notifiable
disease.

- (a) any notifiable disease as defined by section 343 of the Public Health Act 1936 ; and
- (b) any infectious disease to which section 144 of that Act for the time being applies in the district by virtue of regulations made under section 143 thereof.

45.—(1) On the application of the medical officer the occupier of any building in the district which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to
be furnished
by occupier
in case of
notifiable
disease.

(2) If any person required to furnish information under this section fails to furnish it or knowingly furnishes false information he shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression “occupier” includes—

- (a) a person having the charge management or control of the building or of the part of the building in which the person suffering from a notifiable disease is or has been ; and
- (b) in the case of a building the whole of which is ordinarily let out in separate tenements or in the case of a lodging-house the whole of which is ordinarily let to lodgers the person receiving the rent payable by the tenants or lodgers either on his own account or as the agent of another person.

PART VI
—cont.Exclusion of
children from
places of
entertainment
or assembly.

46.—(1) With a view to preventing the spread of a notifiable disease the Council on the advice of the medical officer may by notice published in such manner as they think best for bringing it to the notice of persons concerned prohibit the admission of persons under the prescribed age to places of entertainment or assembly in the district for a time specified in the notice.

(2) If the person responsible for the management of any place of entertainment or assembly having been served by the Council with a copy of a notice published under the preceding subsection admits any person under the prescribed age to that place in contravention of the notice he shall be liable to a penalty not exceeding five pounds:

Provided that in any proceedings under this subsection it shall be a defence to prove that there were reasonable grounds for believing that the person admitted had attained the prescribed age.

(3) In this section the expression “prescribed age” in relation to any notice means such age not exceeding sixteen as may be prescribed by the notice.

PART VII
FINANCIALPower to
borrow.

47.—(1) Subject to the provisions of this Act the Council shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall repay all moneys so borrowed within such periods as the Council may determine not exceeding those respectively mentioned in the third column thereof:—

(1)	(2)	(3)
Purpose	Amount	Period for repayment
(a) For the purchase of the undertaking of the Company.	£5,000	Sixty years from the date or dates of borrowing.
(b) For the purchase of equipment for the market and fair undertaking.	£3,000	Ten years from the date or respective dates of borrowing.
(c) For the payment of the cost charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act

shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by the Council under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

PART VII
—cont.

48. It shall not be lawful to exercise the powers of borrowing by this Act (other than the power to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.

49.—(1) The Council may (if they think fit) establish a fund to be called “the capital fund” to which they may pay— Capital fund.

- (a) any sums derived from the sale of any property of the Council (other than property forming part of the water undertaking);
- (b) the surplus of the revenue income over the revenue expenditure of the general rate fund (not required by law to be applied to or carried forward for any other purpose) on the thirty-first day of March in any year or any part of such surplus; and
- (c) such other sums from the revenue of the general rate fund (in addition to a sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) as the Council may by resolution direct (not being moneys directed by law to be applied to any other purpose):

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (exclusive of the sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of twice the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925;
- (ii) payments into the capital fund shall not be made whenever that fund amounts to the sum of ten thousand pounds or such greater sum as may from time to time be approved by the Minister.

(2) The Council may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable (other than expenditure in connection with the water undertaking)

PART VII
—*cont.*

or in providing money for the repayment of loans (but not in making the annual payment required to be made therefor):

Provided that the amount to be expended under this subsection shall not exceed the sum of four thousand pounds in any one transaction unless a greater sum shall in any case be allowed by the Minister.

(3) (a) Pending the application of the moneys in the capital fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (ii) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital fund out of the general rate fund.

(4) All moneys derived from the sale of any land of the Council which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the Council think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Council.

**Renewal and
repairs fund.**

50.—(1) The Council may (if they think fit) establish a fund to be called “the renewal and repairs fund” for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances horses carts vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and in maintaining and repairing paths and apparatus in public walks and pleasure grounds and may from time to time apply any fund so established or any part thereof in defraying such expenditure but this section shall not apply to any buildings works plant appliances or things for the purposes of any of the Council undertakings in respect of which they are authorised to provide a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

(2) The Council may from time to time pay into the renewal and repairs fund such sums as they think fit from the revenue of the general rate fund (including a sum equal to the interest earned on the renewal and repairs fund and any income arising

from the application of that fund to the purposes authorised) but the maximum standing to the credit of the renewal and repairs fund shall not except with the approval of the Minister at any time exceed the sum of ten thousand pounds.

(3) (a) Pending the application of moneys forming part of the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the renewal and repairs fund in manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

51.—(1) The Council may (if they think fit) establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Council shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Council fully insured in some insurance office of good repute against the specified risks ; or

(b) if the Council insure in some insurance office against the whole or any part of all or any of the specified risks such sums as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Council may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Council shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Council shall provide the yearly payments aforesaid by contributions from the revenue of the general rate fund and (if they think fit) from the housing revenue account and shall

PART VII
—cont.

show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Council which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance:

Provided that any payments by contribution from the housing revenue account shall not exceed the proportion of the total yearly payments which in the opinion of the Council properly relates to the specified risks arising from the purposes for which that account is kept.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks or any of them all moneys for the time being standing to the credit of the insurance fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to and form part of the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Council shall in every year so long as the insurance fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Council between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Council in consequence of the whole or any part of all or any of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Council may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Local Government Act 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings departments or services of the Council and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(8) In this section “the prescribed amount” means such sum as may from time to time be prescribed by resolution of the Council.

52.—(1) If in respect of any financial year the moneys received by the Council on account of the revenue of any of the Council’s undertakings (including the interest and other annual proceeds received by the Council in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Council in respect of that undertaking properly chargeable to revenue the Council (if they think fit) may in respect of that year apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) in the reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) in the renewal construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;
- (c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as the Council may from time to time think reasonable and (unless the amount so set aside is applied in any other manner authorised by any enactment) investing the same in statutory securities until the reserve fund so provided amounts to the maximum reserve fund for the time being prescribed by the Council in respect of that undertaking.

(2) Any reserve fund which has been provided in respect of any of the Council’s undertakings and which is in existence on the first day of April one thousand nine hundred and fifty-four shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

PART VII
—cont.

(3) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Council from the undertaking in connection with which it is formed ; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of that undertaking ; or
- (c) in or towards the payment of the cost of acquiring land for or renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof ;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Expenses of
public
ceremonies etc.

53. The Council may pay—

- (a) reasonable expenses of the Council in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the district ; and
- (b) reasonable expenses in connection with official and courtesy visits by or on behalf of the Council and payments for travelling expenses and for expenses reasonably incurred by or on behalf of any member or officer of the Council in connection therewith.

Recovery of
rates from
certain owners.

54.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Council so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Council from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Council under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “ owner ” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditament to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the Council.

PART VII
—cont.

55. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the district shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

As to recovery
of rates from
tenants
and lodgers.

56. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Council.

Service of
demand notes.

PART VIII

MISCELLANEOUS

57.—(1) For the purpose of providing a parking place under section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 the Council may with the consent of the Minister utilise any part of a park pleasure ground or open space provided by them or under their management and control:

Parking places
in parks etc.

Provided that the part of any park pleasure ground or open space utilised under this section shall not exceed one-eighth of the total area thereof or one acre whichever is the less.

(2) In this section the expression “open space” has the same meaning as in the Open Spaces Act 1906.

58. The Council may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens or to the allotments provided by the Council such sum as they may think fit not exceeding in any one year the sum of fifty pounds.

Prizes for
garden and
allotment
competitions.

59. Any compensation recoverable by the Council for damage caused by negligence to any lamp or lamp-post belonging to them or any apparatus or equipment provided by them in any street or public place shall if the amount thereof does not exceed twenty pounds be recoverable summarily as a civil debt.

Summary
recovery of
damages for
negligence.

60.—(1) Any excessive or unreasonable or unnecessary noise which is prejudicial to health or a nuisance shall be a statutory nuisance for the purposes of Part III of the Public Health Act 1936:

Noise
nuisance.

Provided that—

(a) in any proceedings brought by virtue of this section under the said Part III in respect of a noise occasioned

PART VIII
—cont.

in the course of any trade or business it shall be a defence for the defendant to prove that he has used the best practicable means for preventing or mitigating the noise having regard to the cost and to other relevant circumstances ;

(b) a justice shall not entertain a complaint under section 99 of the said Act with respect to a noise unless it is made by not less than three occupiers of premises within hearing of the noise.

(2) Nothing in this section shall apply to a noise occasioned by the exercise by railway undertakers of statutory powers conferred in relation to their railway undertaking.

(3) Nothing in this section shall affect the power of the county council of the administrative county of Derby to make byelaws under section 249 of the Local Government Act 1933.

PART IX

GENERAL

In executing works for owner Council liable for negligence only.

61.—(1) Where under any enactment the Council or any of their officers execute any work or do any act or thing in default or at the request of any person required by the Council to execute such work or do such act or thing the Council shall not as between themselves and such person in the absence of any negligence on the part of the Council any such officer or any contractor employed by them or him be liable to pay any damages for or in respect of or consequent upon the executing of the work or the doing of the act or thing and any such damages paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such person and shall be recoverable accordingly.

(2) In this section the expression “damages” includes penalties costs and charges.

Application of section 265 of Public Health Act 1875.

62. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted therein.

Inquiries.

63. The Secretary of State the Minister and the Minister of Transport may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply to any such inquiry.

64. The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

PART IX
—cont.

Application of
provisions of
Public Health
Act 1936.

- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers) ;
- Section 276 (Power of local authority to sell certain materials) ;
- Section 277 (Power of councils to require information as to ownership of premises) ;
- Section 283 (Notices to be in writing ; forms of notices &c.) ;
- Section 284 (Authentication of documents) ;
- Section 285 (Service of notices &c.) ;
- Section 286 (Proof of resolutions &c.) ;
- Section 287 (Power to enter premises) ;
- Section 288 (Penalty for obstructing execution of Act) ;
- Section 289 (Power to require occupier to permit works to be executed by owner) ;
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises : Power to order payment by instalments) ;
- Section 292 (Power to make a charge in respect of establishment expenses) ;
- Section 293 (Recovery of expenses &c.) ;
- Section 294 (Limitation of liability of certain owners) ;
- Section 295 (Power of local authority to grant charging orders) ;
- Section 296 (Summary proceedings for offences) ;
- Section 297 (Continuing offences and penalties) ;
- Section 299 (Inclusion of several sums in one complaint &c.) ;
- Section 304 (Judges and justices not to be disqualified by liability to rates) ;
- Section 328 (Powers of Act to be cumulative) ;
- Section 329 (Saving for certain provisions of the Land Charges Act 1925) :

Provided that—

the said sections 277 287 288 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part IV (Streets) Part V (Sanitation and buildings) and Part VI (Infectious diseases) and in section 60 (Noise nuisance) of this Act.

PART IX
—cont.Restriction
on right to
prosecute.

65. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council.

Confirming
authority
for byelaws.

66. As respects byelaws made under subsection (3) of section 27 (Power to use part or parts of Market Place and Coppice for parking of vehicles) of this Act the confirming authority for the purpose of section 250 of the Local Government Act 1933 shall be the Secretary of State.

Appeals.

67. Section 300 of the Public Health Act 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

For protection
of East
Midlands
Electricity
Board and
East Midlands
Gas Board.

68. For the protection of the East Midlands Electricity Board (in this section referred to as "the electricity board") and the East Midlands Gas Board (in this section referred to as "the gas board") the following provisions shall unless otherwise agreed in writing between the Council and the electricity board or the gas board as the case may be apply and have effect:—

(1) In this section—

"apparatus" means—

(a) in relation to the electricity board electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to such board; and

(b) in relation to the gas board mains pipes or other apparatus belonging to such board;

and includes any structure constructed for the lodging therein of apparatus;

"in" in a context referring to apparatus includes under over across along or upon:

(2) For the purposes of section 32 (Prohibition of building until street defined) of this Act land shall not be deemed to be occupied in connection with a building by reason only of the existence of apparatus in such land:

(3) Nothing in section 33 (Prohibition of building until street formed and sewered) of this Act shall prevent—

(a) the electricity board from beginning to instal or proceeding with the installation of apparatus; or

(b) the gas board from beginning to erect or proceeding with the erection of a pressure governor house ;

for the purposes of their undertaking abutting on any new street before such new street is constructed or sewered in accordance with street byelaws :

- (4) The Council shall so exercise the powers of the following sections of this Act as not to cause damage to or (so far as reasonably practicable) to render less convenient the access to any apparatus :—

Section 34 (Guard rails in private streets) ;

Section 36 (Decorations in streets) :

- (5) Nothing in section 39 (Power to repair drains and private sewers) of this Act shall authorise the Council without the consent of the gas board to execute any works in or under any operational land within the meaning of the Town and Country Planning Act 1947 of the gas board but such consent shall not be unreasonably withheld and any question whether such consent is unreasonably withheld shall be determined by arbitration :

- (6) Any difference or dispute which may arise between the Council and the electricity board or the gas board, as the case may be under this section shall be referred to a single arbitrator to be agreed upon between the parties or in default of such agreement appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to such arbitration.

69. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

70. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate fund and general rate or out of moneys to be borrowed under the authority of this Act for that purpose. Costs of Act.

SCHEDULES

FIRST SCHEDULE

(1) All that piece or parcel of land called "the Market Place" situate in Belper in the county of Derby containing an area of 1 rood and 2 perches or thereabouts.

(2) All that piece or parcel of land or ground called "the Coppice" situate near the Market Place in Belper aforesaid and being numbered 585 on the 1/2500 ordnance map Derbyshire sheet XL.13 (1916 edition) and sheet XLV.1 (1946 edition) and containing an area of 1 acre 1 rood and 38 perches or thereabouts.

(3) All that small piece of land situate to the west of and adjoining the Coppice upon which are erected water-closets and other buildings.

(4) Certain rights of way and drainage described in a deed of conveyance dated the 23rd day of September 1921 and made between Woolmer Rudolph Donati White (therein and hereinafter called "the vendor") of the first part the vendor and John Henry Cox (therein and hereinafter called "the trustees") of the second part and the company of the third part (namely):—

- (a) a right of way in connection with the use and occupation of the said piece or parcel of land numbered (2) and the said small piece of land numbered (3) in common with the owner or owners and occupiers for the time being of the adjoining piece of land called Pinfold Close and the buildings thereon and the gardens adjoining thereto belonging at the date of the said conveyance to the vendor over and along a road coloured yellow on a plan drawn on the said conveyance made across the said piece of land called Pinfold Close to and from the said piece or parcel of land numbered (2) from and to Queen Street in Belper aforesaid; and
- (b) a right to discharge water and soil from the water-closets existing at the date of the said conveyance situate on the said small piece of land numbered (3) through the pipe then existing and laid through land belonging to the vendor or any diversion thereof to be thereafter made by the vendor or the trustees.

SECOND SCHEDULE

For the occupation and use of any space on the surface of the ground according to the size and dimensions of the same for each superficial square foot or fractional part of a superficial square foot occupied or used for each day or part of a day—

Any sum not exceeding	...	...	...	...	s.	d.
The minimum charge for each day to be	...	...	...	...	5	0
						1½

For every container or stand wherein or whereon are goods articles commodities or other things whatsoever carried or exposed for sale in any place for fairs in the district or in any lands connected therewith not otherwise chargeable under the foregoing provisions of this schedule for each day or part of a day—

Any sum not exceeding	...	...	...	...	...	10	0
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Table of Statutes referred to in this Act

Title	Session and chapter
Lands Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Markets and Fairs Clauses Act 1847.	10 & 11 Vict. c. 14.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Electric Lighting Act 1882... ..	45 & 46 Vict. c. 56.
Private Street Works Act 1892	55 & 56 Vict. c. 57.
Open Spaces Act 1906	6 Edw. 7. c. 25.
Land Charges Act 1925	15 & 16 Geo. 5. c. 22.
Supreme Court of Judicature (Consolidation) Act 1925	15 & 16 Geo. 5. c. 49.
Public Health Act 1925	15 & 16 Geo. 5. c. 71.
Rating and Valuation Act 1925	15 & 16 Geo. 5. c. 90.
Law of Property (Amendment) Act 1926	16 & 17 Geo. 5. c. 11.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Restriction of Ribbon Development Act 1935	25 & 26 Geo. 5. c. 47.
Public Health Act 1936	26 Geo. 5. and 1 Edw. 8. c. 49.
Factories Act 1937	1 Edw. 8. and 1 Geo. 6. c. 67.
Food and Drugs Act 1938... ..	1 & 2 Geo. 6. c. 56.
Acquisition of Land (Authorisation Procedure) Act 1946	9 & 10 Geo. 6. c. 49.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6. c. 58.
Town and Country Planning Act 1947	10 & 11 Geo. 6. c. 51.
Companies Act 1948	11 & 12 Geo. 6. c. 38.
Arbitration Act 1950	14 Geo. 6. c. 27.

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